

TENTATIVE RULING

Case: **Highland Pacific Capital, LLC v. MAC Wines, LLC dba Three Wine Company**

Case No. CV2026-1082

Hearing Date: **April 30, 2026** **Department Fourteen** **9:00 a.m.**

Defendant MAC Wines, LLC dba Three Wine Company's demurrer is **OVERRULED**. (Code Civ. Proc., § 430.10.) Defendant filed its answer on April 15, 2026. Then, on April 22, 2026, defendant filed this demurrer. While a defendant may file a demurrer and answer at the same time, a defendant cannot file a demurrer after an answer has been filed. (Code Civ. Proc., §§ 430.30, subd. (c), 1170, subd. (a).) Therefore, the Court finds that defendant's demurrer is untimely.

The notice of demurrer does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for demurring party, or the demurring party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **In re Eliasaph Hunter**
 Case No. PR2025-0292

Hearing Date: **April 30, 2026** **Department Fourteen** **9:00 a.m.**

The petitioner, Shei’Vonne N. Weber, and the minor, Eliasaph J. Hunter, are **DIRECTED TO APPEAR** (in person or by Zoom) and be prepared to advise the Court: (1) if parents are living separate and apart; and, (2) if parents are living separate and apart, if petitioning parent has custody, care and control of the minor. (Cal. Rules of Court, rule 7.952; Prob. Code, § 3500; YCR 2.4.) If the parties fail to appear at the hearing and the Court has not excused their personal appearance, the petition will be denied without prejudice. No request for a hearing is required.